

licensing laws.” (SAC ¶ 91.) As alter ego has been sufficiently alleged, this claim survives as to all Defendants.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600932	DAVIS VS DRIVE INSURANCE COMPANY	DEMURRER ON COMPLAINT

Tentative Ruling: Defendant, Drive Insurance Company’s Demurrer, as to the 1st and 2nd Causes of action is sustained with leave to amend within 20 days.

A demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120,125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

A demurrer on the ground of uncertainty of pleading may lie “if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citation.]” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) “Where a demurrer is made upon ground of uncertainties, it must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears. (See *Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809.)

FIRST CAUSE OF ACTION – BREACH OF CONTRACT.

Defendant demurs on the cause of action for breach of contract on the ground that Plaintiff fails to set forth the terms of the contract or attach a copy of the contract which was allegedly breached by Defendant. On that basis, Defendant argues that Plaintiff fails to allege facts sufficient to state a cause of action for breach of contract. Defendant also argues that the Complaint alleges the existence of two contracts: the insurance policy and the settlement agreement, but it is unclear from the Complaint which of the contracts was breached by Defendant.

The Complaint fails to state a cause of action for breach of contract. The elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 402.) Here, as Defendant argues, the existence of a contract has not been sufficiently plead.

As one method of pleading the existence of a contract, “[a] written contract may be pleaded either by its terms- set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference- or by its legal effect.” (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993.)

Alternatively, a plaintiff may plead the legal effect of the contract rather than its precise language, as long as the allegations are sufficient to establish a prima facie right to relief. (*Construction protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 199 [contract satisfactorily alleged that the insurance policy obligated defendant to defend and indemnify plaintiff against suits seeking damages and that, under the terms of the policy, a third party’s claim of setoff fell within the scope of the contractual obligation].) Here, Plaintiff has done neither. Therefore, Plaintiff has not alleged the existence of a contract.

Also, the Complaint is uncertain. As Defendant argues, the Complaint alleges the existence of two contracts: the insurance policy and the settlement agreement, but the allegations are insufficient to discern on which Plaintiff’s claim is based. On that basis, Defendant argues that the pleading is uncertain. Plaintiff argues that he is alleging that Defendant is in breach under both the insurance policy and the settlement agreement. However, as set forth above, Plaintiff has failed to allege the existence of a contract by either setting forth its terms, describing its legal effect, or simply attaching a copy to the Complaint.

SECOND CAUSE OF ACTION – BREACH OF IMPLIED COVENANT OF GOOD FAITH

“Bad faith claims are based on the contractual covenant of good faith and fair dealing.” (*San Diego Housing Com’n v. Industrial Indem. Co.* (1998) 68 Cal.App.4th 526, 544.) The covenant of good faith and fair dealing is implied by law in all contracts, including policies of insurance. (*Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654, 658.) However, where there is no breach of contract found, there is no grounds for finding a breach of the covenant. (*San Diego Housing Com’n v. Industrial Indem. Co.*, *supra*, 68 Cal.App.4th at 544.) Here, for reason Plaintiff has failed to sufficiently allege a cause of action for breach of contract, this claim also necessarily fails.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601678	AKIROV VS RIVIAN AUTOMOTIVE, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Defendant Rivian Automotive, Inc.’s Motion to Compel Arbitration is denied.

Defendant’s request for judicial notice of Plaintiff’s Complaint is granted.

The court must grant the petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds